

In D. 6/98, the DBA added that these conditions were in line with those for correcting errors under R. 89.EPC.1973 (cf. now R. 140.EPC), particularly in the case of errors of transcription or calculation in the marking. Under Art. 27(1) REE 1994 (cf. Art. 24(1) REE), the DBA was not empowered to reopen the assessment procedure (D. 15/97). The DBA was not intended to be a department of second instance empowered to examine whether the marks awarded for a candidate's examination were justified on their merits or correct, and thus to superimpose its own value judgment on that of the Examination Board (D. 20/96 and D. 6/02).

D. 12/00 concerned a complaint about differences between the individual marks awarded by the two examiners. Relying on the principle of uniformity of marking (Art. 16 REE 1994; Art. 6(2)(c) REE, English text, now provides for consistency of marking), the appellant claimed that the higher number of marks should count. The board confirmed its established case law (cf. D. 1/92, OJ 1993, 357, above): differences of opinion over the number of marks to be awarded for a given answer were a reflection of value judgments which were not, in principle, subject to judicial review. The fact that two independent examiners had arrived at different marks was not per se a violation of the applicable provisions. See also case summaries in this chapter V.C.2.4.3.

In D. 13/02 the board stated that obvious mistakes as referred to above were those which could be identified without a re-evaluation of the examination paper. That would be the case, for instance, if one and the same paper had been marked **very** differently by the two examiners, since the marking discrepancy alone would indicate an infringement of the principle of uniform marking, irrespective of the level of the marks awarded. Another example of an obvious mistake would be a question whose wording was ambiguous or incomprehensible. That would be clear straight away, without any reference to marks awarded, from the meaning that common sense would ascribe to the wording of the question concerned.

D. 17/05 cited D. 13/02 to point out that the existence of a mistake within the meaning of D. 1/92 could not be deduced from a comparison of the candidate's answer with another answer. The board also cited the statement that the disclosure of marking instructions which may have been used by the examiner was not required for a decision on an appeal and that under the established case law no other entitlement existed to any such disclosure.

D. 6/13 concerned an alleged infringement by the Examination Board of R. 23(3) IPREE (regarding the content of Paper A). The Board agreed that the Examination Board has an implied obligation to prepare the examination papers and corresponding marking scheme correctly, in that the marking scheme should award the appropriate marks for correct solutions and this "correct" marking scheme should also be "correctly" applied in every case. However, the DBA may not be competent to determine whether the marking scheme or individual marking is correct from every possible aspect which may have adversely affected the marking of a candidate, given that Art. 24(1) REE excludes certain appeal grounds. Therefore, if the Examination Board did not "perfectly" fulfil this implied obligation, in that arguably correct solutions were not awarded any or enough marks, this could not qualify immediately as an infringement of R. 23(3) IPREE in the sense of Art. 24(1) REE,

but was a question be decided on a case-by-case basis. If the DBA were to extend the examination of appeals to an in-depth technical examination, this would in effect reduce to zero the scope of the restriction on the possible appeal grounds stipulated in Art. 24(1) REE, and require value judgments to be made. See also e.g. D.10/19.

D.14/17 and D.20/17 concerned the candidates' inventive step attack in Paper C starting from Annex 6 as the closest prior art, for which they had received 0 out of 20 marks. Based on a summary examination and (at least) a figure filed by the appellant, it was evident for the board that, contrary to what was asserted in the examiners' report, no technical obstacle existed with regard to Annex 6, which was reasonably to be regarded as an alternative starting point (see also e.g. parallel case D.25/17). Furthermore, having concluded that there were special reasons not to remit the case to the Examination Board (cf. Art. 12 RPDBA; here: prima facie competent and logical answer, small number of marks involved, very short time between oral proceedings and next EQE session), the board in D.14/17 allowed the appellant's requests to be awarded a "compensable fail" for Paper C and, based on that, to be declared to have passed the EQE (Art. 14(1) REE). See also in this regard D.3/14, summarised in the next section, and D.5/14, both concerning the EQE pre-examination.

The burden of establishing serious and obvious mistakes necessarily lies with the appellant who alleges it (D.46/07). In D.24/17 the DBA found that on most issues the appellant did not substantiate in detail in what respect the solution of the examiners' report was incorrect, but left it to the board to establish of its own motion to what extent the official solution and the marking of her papers was or could have been wrong. This would go beyond the scope of the board's review. Only on the clarity-related issues in paper B were the appellant's submissions (partly) well-founded. It was evident that she had addressed at least some of them in her answers, and it was therefore incomprehensible that no point at all was awarded. This amounted to a serious and obvious mistake which affected the marking. The board remitted the case for paper B to be re-marked with respect to the aspect of clarity and ordered reimbursement of the appeal fee at 25%.

2.6.4 Review of the marking of the pre-examination

In D.3/14 the appellant had obtained the grade "fail" (with 68 marks) in the EQE pre-examination. She argued that the answer to statement 10.4 in the question paper should have been "false", rather than "true", as given in the examiners' report, and requested that the decision of the Examination Board be set aside and that she be awarded a "pass".

Applying the principles established in the case law on the EQE itself (e.g. D.1/92, see chapter V.C.2.6.3 above), the board examined whether the alleged mistake was so obvious that it could be established without reopening the entire marking procedure. It found that statement 10.4 should have been formulated differently in order to express the aim intended. Candidates could not be expected to make an assumption in this respect (cf. R. 22(3) IPREE, providing that candidates must limit themselves to the facts given). The appellant's understanding of statement 10.4 was justified from an objective point of view. The answer to it was "false" and not "true" as indicated in the examiner's report. The examiners had based their evaluation on an incorrect premise and therefore the contested

decision was based on serious and obvious mistakes which could be established without reopening the entire marking procedure. The decision had to be set aside and the appeal fee reimbursed (Art. 24(4) REE).

Concerning the requested award of a "pass", it held that the appeal board was not empowered by Art. 24(4), second sentence, REE to correct the decision, i.e. to review the marks and grade of an examination paper, and therefore considered whether special reasons provided a legal basis for not remitting the case to the Examination Board (cf. Art. 12 RPDBA). Only in a few exceptional cases had the DBA found such special reasons (D. 5/86; D. 11/91, OJ 1995, 721; D. 8/08 and D. 9/08), but in appeals against decisions of the Examination Board it had not made use of this power to review the contested decision on its merits. However, in the pre-examination, a multiple choice paper, the marks were awarded according to a strict scheme not involving any discretion and the award of a "pass" or "fail" was merely the arithmetical outcome of the marks achieved. From a limited review, the board was able to establish the correct marks on the basis of the appellant's answer paper without interfering with any value judgment of the examination committee or Examination Board. Also taken into account were the matter's urgency, since a "pass" in the pre-examination was a precondition for the main examination, and the fact that the Examination Board, by not rectifying its decision, even though the discrepancy had been comprehensively substantiated, had burdened the appellant with appeal proceedings. With the correction, the total marks rose from 68 to 70 and a "pass" was therefore awarded. See also D. 3/19.

In D. 1/15, too, the DBA considered that the settled jurisprudence (e.g. D. 1/92; D. 6/92; D. 7/05, OJ 2007, 378) also applied to appeals on the pre-examination, even if the marking was hardly ever in dispute, given the simple marking scheme of a multiple-choice test. However, the review requested in this case was directed at the content of the examination as presented to the candidates. To decide on the issues, the board would have had to review at least a substantial part of the paper and perform a detailed, partly technical analysis of the facts presented. This exercise appeared to be well beyond the powers of the board. See also e.g. D. 6/16.

See also the decisions in this chapter V.C.2.4.1 Setting and marking the pre-examination.

2.6.5 Legitimate interest

According to the established case law, a candidate who appealed against failing the EQE but resat and passed it before the appeal had been decided still retained a legitimate interest in pursuing the appeal. This was confirmed in D. 3/98. Any other view would amount to denying him recourse to the law; legitimate interest would then depend on how long proceedings took. However, appellants could exert little influence over that, and should therefore not have to suffer the consequences. Whether there was a legitimate interest was to be determined with reference to the date the proceedings were initiated (in this case, on the day the appeal was filed).

3. Disciplinary matters

The Regulation on Discipline for Professional Representatives (RDR, OJ 1978, 91; as amended: OJ 2008, 14; OJ 2018, A57) contains not only provisions on general professional obligations, professional secrecy and conduct towards clients but also provisions relating to the disciplinary bodies responsible for imposing disciplinary measures (see Art. 5 RDR; also Additional Rules of Procedure of the Disciplinary Committee and those of the Disciplinary Board, OJ 1980, 176, and 177 and 183, respectively; as amended: OJ 2007, 552; Additional Rules of Procedure of the Disciplinary Board of Appeal - RPDBA, OJ 1980, 176 and 188; as amended: OJ 2007, 548). While the RDR lays down the general requirements for *epi* members, the associated *epi* Code of Conduct (OJ 2003, 523) lays down the general principles of professional conduct (see points 1(a) and (b) of the Code). The above legal texts are also published in OJ Supplementary publication 1 of each year.

3.1. Disciplinary measures

According to D.5/86 (OJ 1989, 210), an infringement of the rules of professional conduct must be established to the satisfaction of the disciplinary body before it can impose a disciplinary measure. Absolute certainty is not required, but a degree of probability which in human experience verges on certainty. A disciplinary measure cannot be imposed if there is reasonable doubt as to whether the infringement has occurred.

In D.11/91 (OJ 1995, 721) the EPO Disciplinary Board had ordered the deletion of the appellant from the list of professional representatives for an indefinite period. In his appeal, the appellant argued that the procedure before the DBA did not comply with the provisions of the European Convention for the Protection of Human Rights (ECHR), in particular because the DBA had been established not by national law but by the Administrative Council, the disciplinary bodies did not constitute an independent court, the DBA was not a national authority, and its decisions could not be referred to a higher court of appeal.

The DBA decided that the ECHR contained provisions which expressed general principles of law common to the member states of the European Patent Organisation. As such these provisions should be considered part of the legal system of this Organisation and should be observed by all its departments. This therefore applied to Art. 13 ECHR, which guaranteed the protection by the judiciary of the rights of the individual. The "national authority" mentioned in this article was clearly meant to be understood as a competent authority in accordance with the law of the state concerned. However, in ratifying the Munich Convention, the contracting states accepted a transfer of prerogatives whereby professional representatives before the EPO became subject to the same set of professional regulations, controlled by a central body whose decisions were open to effective remedy before a body of second instance whose independence was guaranteed by the rules governing its composition. The drafting of these regulations and the establishment of these bodies was thus consistent with general principles of law, in particular those enshrined in the ECHR.

The board took the view that, in order to ensure that the penalty was proportionate to the seriousness of the charges and that the maxim whereby penalties should not be arbitrary but fixed or predetermined was respected, Art. 4(1)(e) RDR should be understood as meaning "for a period not defined by the text", that is for a discretionary period to be decided by the competent disciplinary body. In its decision, the latter should fix the said period and give reasons for its choice.

In D. 20/99 (OJ 2002, 19), appellant X filed an appeal against the EPO Disciplinary Board's decision to issue him with a reprimand. The DBA, reviewing the penalty imposed in respect of the first charge only, held that X's actions, for which he had been prosecuted in France, were in breach of Art. 1(1) and (2) RDR. It was clear that D had been involved in drawing up European patent applications in consultancy L, owned by X, while being paid by company P. However, it was evident from the file that this contractual arrangement had never been the subject of invoicing. That gave an advantage to consultancy L by cutting the cost of drawing up patent applications. As it inevitably entailed unfair distortion of competition in relation to other European patent attorneys, this was an undue advantage. The misuse of corporate assets was tantamount to unfair competition and thus represented a breach of the rules of professional conduct.

According to D. 1/18, the requirement for a Disciplinary Committee decision to state which rule of professional conduct was violated and which recommendation, if any, was not observed (Art. 17 Additional Rules of Procedure of the *epi* Disciplinary Committee; cf. also Art. 15 Additional Rules of Procedure of the EPO Disciplinary Board and Art. 17 RPDBA) is not merely a formality. To the extent that disciplinary proceedings have similarities to criminal proceedings (cf. also D. 19/99), this is an expression of the principle "nullum crimen sine lege". There is no room for issuing a penalty under Art. 4(1) RDR for generally violating the spirit, aim and purpose of the RDR or *epi* Code of Conduct.

3.2. Appealability of decisions of the *epi* Disciplinary Committee

In D. 15/95 (OJ 1998, 297) the DBA ruled that a Disciplinary Committee decision dismissing a complaint was a decision in the legal sense only as regards the persons referred to in Art. 8(2) RDR, and only they could appeal against it. Thus the person who made the complaint had no right of appeal. Review on appeal was limited to safeguarding the rights of the "accused", i.e. the "professional representative concerned" within the meaning of the RDR (see also D. 1/98). In D. 28/97 and D. 24/99 the DBA added that the purpose of disciplinary proceedings was not for individuals to pursue their interests vis-à-vis others (although these might be affected in individual cases) but rather to serve the public interest in orderly and proper exercise of professional representation before the EPO. Any claims by individuals arising from a representative's infringement of the rules of professional conduct were exclusively a matter for the competent (civil) courts (see also D. 25/05 and D. 3/13).

In cases D. 1/18 and D. 2/18 the question arose whether a decision by the *epi* Disciplinary Committee to refer a matter to the EPO Disciplinary Board under Art. 6(2)(c) RDR is a final decision within the meaning of Art. 8(1) RDR and hence appealable to the DBA. In its two decisions D. 2/18 of 5 April 2019 (appeal by the President of *epi*) and D. 2/18 of 8 April 2019